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DEFENDANT'S MOTION FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, SUMMARY ADJUDICATION

Motion filed on February 13, 2026.

MOVING PARTY: Defendant, RH Lan, Inc. dba Rooter Hero.

RESPONDING PARTY: Plaintiff, Rogelio Licea.

NOTICE: OK.

RELIEF REQUESTED: Summary judgment on Plaintiff's Complaint or, alternatively, summary adjudication of four issues.

RULING: The motion for summary judgment is denied. The alternative motion for summary adjudication is granted in part.

BACKGROUND

On March 21, 2024, Rogelio Licea (Plaintiff) filed the Complaint against Tlacaellel Alberto Flores (Flores), Victor Hernandez (Hernandez), Rooter Hero Plumbing, Inc., John Akhoian (Akhoian), and Does 1 through 100, alleging causes of action for assault, battery, intentional infliction of emotional distress, negligence, and negligent hiring, training, and retention. On July 2, 2024, Plaintiff amended the Complaint to substitute RH Lan, Inc. dba Rooter Hero (Rooter Hero) for Doe 1. Rooter Hero Plumbing, Inc. was thereafter dismissed without prejudice.

On February 13, 2026, Rooter Hero and Akhoian filed the present motion for summary judgment or, alternatively, summary adjudication, a separate statement, and supporting evidence. On May 11, 2026, Plaintiff filed an opposition, a separate

statement, the declaration of John J. Perlstein, and exhibits. On June 18, 2026, Rooter Hero filed a reply.

The Court treats Defendant RH Lan, Inc. dba Rooter Hero's February 13, 2026 Motion for Summary Judgment, or in the Alternative, Summary Adjudication (Reservation ID: 080509515852), as the operative Motion.

LEGAL STANDARD

In reviewing a motion for summary judgment, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.)

"[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).) A moving defendant need not conclusively negate an element of plaintiff's cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.)

To meet this burden of showing a cause of action cannot be established, a defendant must show not only "that the plaintiff does not possess needed evidence" but also that "the plaintiff cannot reasonably obtain needed evidence." (*Aguilar*, supra, 25 Cal.4th at p. 854.) It is insufficient for the defendant to merely point out the absence of evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.) The defendant "must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim." (*Ibid.*)² The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (*Aguilar*, supra, 25 Cal.4th at p. 855.)

"Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, "shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action." (*Ibid.*) "If the plaintiff cannot do so, summary judgment should be granted." (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.)

DISCUSSION

Relevant Facts

This action arises from a roadside altercation that occurred on July 19, 2023. Plaintiff alleges that Flores and Hernandez were, at all relevant times, employees of Rooter Hero acting within the course and scope of their employment. (Complaint ¶¶ 2, 4, 14, 19, 27.) Plaintiff further alleges that Rooter Hero and Akhoian are vicariously liable for their conduct. (Complaint ¶¶ 14, 19, 27.) Plaintiff also alleges that Rooter Hero and Akhoian are independently liable for negligently hiring, training, retaining, and supervising them. (Complaint ¶¶ 30-32.)

The following is undisputed: The incident occurred on the morning of July 19, 2023, in Santa Clarita. (Defendants' Separate Statement of Undisputed Material Facts "UMF" No. 23.) Flores and Hernandez were driving a Rooter Hero van and wearing company uniforms en route to a Rooter Hero job site. (UMF No. 25.) Plaintiff was working as a surveyor at a residential property in a residential section of Market Street and standing on the side of the road. (UMF No. 24.) Plaintiff yelled at the van to slow down as it approached him. (UMF No. 27.) Plaintiff raised his hands in a gesture he described as "like, what's up? Like, slow down." (UMF No. 29.) The van proceeded approximately 600 feet. (UMF No. 29.) The van then stopped and

reversed approximately 500 feet back to Plaintiff's location. (UMF No. 30.) A physical confrontation followed. (UMF Nos. 31-36.) Flores and Hernandez then drove away. (UMF No. 39.) Plaintiff pursued them and contacted police. (UMF Nos. 41-42.) The parties returned to the incident location together to await police. (UMF No. 45.) Police arrested Flores for assault with a deadly weapon. (UMF No. 48.)

Plaintiff additionally asserts, based on Flores's deposition testimony, that Flores was compensated from the time he began driving the assigned company vehicle. (Plaintiff's Additional Material Facts "PAMF" No. 1.) Plaintiff also asserts that Flores and Hernandez were approximately two to three minutes from the job site when the encounter began. (PAMF No. 2.)

Issue Number 1 and 2: As to John Akhoian

Issues Numbers 1 and 2 seek adjudication of all causes of action against Akhoian. Plaintiff dismissed Akhoian without prejudice on June 16, 2026. No claims remain pending against him. Issues Numbers 1 and 2 are DENIED as moot.

Issue Number 3: Vicarious Liability

Rooter Hero seeks summary adjudication of the first through fourth causes of action on the ground that Flores and Hernandez acted outside the scope of their employment during the alleged confrontation with Plaintiff.

An employer is vicariously liable for torts committed by an employee within the scope of employment. An employee's "willful, malicious and even criminal torts may fall within the scope of his or her employment," although the employer did not authorize the conduct. (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 296–297 (*Lisa M.*)). The employer nevertheless "will not be held liable for an assault or other intentional tort that did not have a causal nexus to the employee's work." (*Id.* at p. 297.) "The fact that the employment brought tortfeasor and victim together in time and place is not enough." (*Id.* at p. 298.) The tort must be "engendered by or arise from the work"; that is, the incident must be an "outgrowth" of the employment, and the risk must be inherent in the working environment or typical of or broadly incidental to the employer's enterprise. (*Id.* at pp. 298–299.) In the case of an intentional tort, the employee's "motivating emotions" must be "fairly attributable to work-related events or conditions." (*Id.* at p. 301.)

The related foreseeability inquiry asks whether, "in the context of the particular enterprise," the employee's conduct was "so unusual or startling that it would seem unfair to include the loss resulting from it among other costs of the employer's business." (*Farmers Insurance Group v. County of Santa Clara* (1995) 11 Cal.4th 992, 1004.) "Vicarious liability may also be proper where the tortious conduct results or arises from a dispute over the performance of an employee's duties, even though the conduct is not intended to benefit the employer or to further the employer's interests." (*Id.* at p. 1006.) Scope of employment ordinarily presents a question of fact and becomes a question of law only when "the facts are undisputed and no conflicting inferences are possible." (*Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 213.)

Here, Rooter Hero does not meet its initial burden of establishing that Flores acted outside the scope of employment as a matter of law. Rooter Hero relies on Plaintiff's account that Flores and Hernandez were driving a Rooter Hero van to a Rooter Hero job site when Plaintiff yelled at the van to slow down and raised his hands in a gesture "like, what's up? Like, slow down." The van proceeded approximately 600 feet, stopped, and reversed approximately 500 feet to Plaintiff's location. A physical confrontation then followed. (UMF Nos. 25, 27, 29–36; Anderson Decl., ¶ 3, Ex. 1, Lincea Depo. at 59:4–17, 63:3–19, 64:11–65:3, 71:16–72:23.)

The stop and reversal support Rooter Hero's inference that Flores discontinued the assigned trip and returned solely to pursue a personal confrontation. On that view, Flores had, "for however brief a space of time, . . . ceased to serve his principal." (*Thorn v. City of Glendale* (1994) 28 Cal.App.4th 1379, 1383.)

Rooter Hero's own evidence also supports a contrary inference. The employees first encountered Plaintiff while Flores was operating Rooter Hero's van on an assigned trip. (UMF No. 25.) Rooter Hero further submits Flores's account that he

believed road construction might be occurring, heard Plaintiff yelling that they were driving too fast, and pulled over because he “needed to know what this guys [sic] problem was and why he was threat[en]ing us and acting with so much anger towards us.” (UMF Nos. 53–56.) Under either account, the confrontation arose from Plaintiff’s reaction to Flores’s operation of the company vehicle during assigned travel.

Pritchard v. Gilbert (1951) 107 Cal.App.2d 1 is instructive. There, an employee driving on his employer’s business believed another motorist had violated his rights on the highway. The employee turned around, pursued the motorist, caused him to stop, and severely beat him. The court concluded that the employee, “angered by what he deemed to be the unlawful driving of respondent,” proceeded through “a series of connected and uninterrupted acts.” His acts in “turning, pursuing respondent and assaulting him” were “so intimately connected with his service to his employer and so clearly resulted from a dispute arising out of his employment” that they fell within the scope of employment. (Id. at pp. 3, 5.)

Fields v. Sanders (1947) 29 Cal.2d 834 (Fields) provides additional support. There, an alleged collision required the employee to stop and exchange identifying information, and the employee continued moving the truck to avoid obstructing traffic while disputing responsibility for the collision. (Id. at pp. 839–841.) Defendants correctly note that Flores had no comparable legal obligation to stop or return to Plaintiff. The Supreme Court in Fields, however, also explained that “the quarrel leading to plaintiff’s injury arose solely over Sanders’ performance of his duties as the driver of the truck” and that his “entire association with plaintiff arose out of his use of the public highway on his employer’s business.” (Id. at pp. 839–840.) The Court further observed that the truck-driving assignment necessarily brought the employee into contact with other road users and could generate disputes concerning “the reciprocal conduct of motorists on the highway.” (Id. at p. 841.)

Rooter Hero therefore frames the foreseeability question too narrowly by asking whether an assault on a pedestrian is a predictable consequence of plumbing work. The relevant authorized activity was Flores’s operation of Rooter Hero’s vehicle on public roads to reach an assigned service call. Pritchard and Fields recognize that an assault arising from a dispute over work-related driving may remain within the scope of employment, including when the employee becomes angry and personally escalates the dispute. (Pritchard, *supra*, 107 Cal.App.2d at pp. 3, 5; Fields, *supra*, 29 Cal.2d at pp. 839–841.) Farmers Insurance likewise identifies those decisions as examples of tortious conduct arising from an employee’s operation of a vehicle on the employer’s business or from a dispute over the performance of employment duties. (Farmers Insurance, *supra*, 11 Cal.4th at pp. 1005–1006.)

Lisa M. does not compel a different result. Nothing occurring during the prescribed examination in that case provoked or generated the technician’s misconduct. The misconduct was “the independent product” of a decision unrelated to his duties. (Lisa M., *supra*, 12 Cal.4th at pp. 302–303.) The Court distinguished assaults that originated in a work-related dispute, citing Fields. (Id. at pp. 300–301.) Here, the evidence permits a finding that assigned driving supplied more than the occasion for the encounter. A trier of fact could find that the roadway interaction generated Flores’s anger and his decision to confront Plaintiff.

Thus, one reasonable inference is that Flores’s decision to stop and reverse constituted a complete departure from Rooter Hero’s business to pursue personal retaliation. The competing reasonable inference is that the alleged assault was an unauthorized escalation of a continuing roadway dispute engendered by Flores’s performance of assigned driving. Because Rooter Hero’s own evidence permits both inferences on causal nexus, enterprise foreseeability, and departure from employment, Rooter Hero has not established a complete defense as a matter of law. The burden therefore does not shift to Plaintiff. (Code Civ. Proc., § 437c, subd. (p)(2).)

Even if Rooter Hero’s showing were sufficient to shift the burden, Plaintiff’s evidence independently raises the same triable issue. Flores testified that Rooter Hero assigned him the van, that he took it home each day, and that he used it “[j]ust for work.” He was paid from the time he began driving. Flores and Hernandez were in uniform and traveling to a Rooter Hero job site approximately two to three minutes away. (PAMF Nos. 1–3; Perlstein Decl., ¶ 3, Ex. B, Flores Depo. at 45:20–47:5, 49:10–25, 50:15–25, 55:1–10.)

Flores also testified that he initially believed Plaintiff was working in the street and slowed down for that reason. He still held that belief when he later decided to pull over. (PAMF No. 4; Flores Depo. at 17:1–25, 49:25–50:15.) Flores separately testified that the roadway encounter made him angry and that he stopped because he wanted to confront Plaintiff over what

Plaintiff had said and done. He admitted that nobody forced him to stop. (PAMF No. 5; Flores Depo. at 21:1–25, 23:1–25, 56:1–9.) This evidence permits a finding that the emotion motivating the confrontation arose from the immediately preceding roadway interaction during assigned travel.

Because Rooter Hero has not established as a matter of law that Flores acted outside the scope of employment, it has not established a complete defense to the first through fourth causes of action. Issue Number 3 seeks adjudication of those causes of action in their entirety based on the conduct of both Flores and Hernandez. A triable issue as to Flores alone therefore precludes the requested adjudication. (Code Civ. Proc., § 437c, subd. (f)(1).)

Summary Adjudication as to Issue Number 3 is DENIED.

Issue Number 4: Negligent Hiring, Training, Supervision, and Retention

Rooter Hero seeks summary adjudication of the fifth cause of action on the ground that it was not negligent in hiring, training, or retaining Flores and Hernandez. The fifth cause of action also alleges negligent supervision. (Complaint, ¶¶ 30–32.)

“California case law recognizes the theory that an employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee.” (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.) “Negligence liability will be imposed on an employer if it ‘knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.’” (Phillips v. TLC Plumbing, Inc. (2009) 172 Cal.App.4th 1133, 1139.) “The duty is breached when the employer knows or should know facts which would warn a reasonable person that the employee presents an undue risk of harm to third persons in light of the particular work to be performed.” (Federico v. Superior Court (1997) 59 Cal.App.4th 1207, 1214.)

“[T]here can be no liability for negligent supervision in the absence of knowledge by the principal that the agent or servant was a person who could not be trusted to act properly without being supervised.” (Juarez v. Boy Scouts of America, Inc. (2000) 81 Cal.App.4th 377, 395.) Foreseeability “is determined in light of all the circumstances and does not require prior identical events or injuries.” (D.Z. v. Los Angeles Unified School Dist. (2019) 35 Cal.App.5th 210, 229.)

Here, Rooter Hero does not meet its initial burden as to negligent retention and supervision. UMF Nos. 17 and 18 state that Rooter Hero had no actual knowledge that Flores or Hernandez had a propensity for violence. They further state that Rooter Hero’s background checks disclosed no basis for concern or indication of violent conduct and that Rooter Hero had not been made aware of any prior physical altercations or threats. The cited evidence does not establish those facts as stated.

Jay Shaw, Rooter Hero’s Human Resources Manager and Administrator, states that Rooter Hero completed preemployment background checks of Flores and Hernandez and deemed the results “acceptable.” Shaw does not state that the checks disclosed no history involving threats, violence, or confrontational conduct. (Shaw Decl., ¶¶ 2, 12.)

Christopher Pappas, Rooter Hero’s Operations Manager, states that Flores and Hernandez received positive feedback, that no customer complained about either employee, and that no prior workplace incident report involved either employee and a customer. (Pappas Decl., ¶¶ 2, 4–6.) That evidence establishes the absence of customer complaints and customer-related incident reports. It does not establish that Rooter Hero had no other preincident information bearing on whether Flores or Hernandez required further inquiry or supervision.

John Akhoian states that he personally received no reports concerning Flores or Hernandez and was not involved in their supervision. (Akhoian Decl., ¶¶ 7, 12–14.) His personal lack of knowledge does not establish that Rooter Hero, through the regional managers responsible for hiring, retention, and supervision, possessed no information bearing on the particular risk at issue.

In determining whether Rooter Hero met its initial burden, the Court strictly construes its evidence and resolves reasonable doubts in Plaintiff's favor. Rooter Hero's evidence establishes only that the background checks were deemed acceptable, that the employees received positive feedback, and that there were no customer complaints or customer-related incident reports. It does not make a prima facie showing that Rooter Hero lacked actual or constructive notice for purposes of the negligent retention and supervision theories raised here. The burden therefore does not shift. (Code Civ. Proc., § 437c, subd. (p)(2).)

Even if Rooter Hero's showing were sufficient to shift the burden, Plaintiff raises a triable issue as to Flores. Flores testified that he had previously "got into an argument with another boss" and that the matter "was dealt with pretty fast." (Flores Depo. at 9:25–10:5.) Pappas, Flores's direct supervisor, testified that Rooter Hero provided him no disciplinary histories when he became Operations Manager. (Pappas Depo. at 9:15–25.)

Viewed in Plaintiff's favor, this evidence permits an inference that Rooter Hero knew of a prior workplace confrontation involving Flores but did not communicate that information to his direct supervisor. Whether that incident warranted further inquiry or supervision presents a factual question. (D.Z., supra, 35 Cal.App.5th at p. 229.)

Rooter Hero also presents evidence that Flores and Hernandez received customer-service, reporting, safety, and driver-safety training. (Pappas Decl., ¶ 3.) Even assuming that evidence disposes of negligent training, summary adjudication is unavailable because Rooter Hero has not disposed of the negligent hiring, retention, and supervision theories pleaded in the same cause of action. (Code Civ. Proc., § 437c, subd. (f)(1).)

Because Rooter Hero has not completely disposed of the negligent retention and supervision theories, it has not completely disposed of the fifth cause of action. (Code Civ. Proc., § 437c, subd. (f)(1).)

Summary Adjudication as to Issue Number 4 is DENIED.

CONCLUSION

Defendant RH Lan, Inc. dba Rooter Hero's Motion for Summary Judgment, or in the Alternative, Summary Adjudication (Reservation ID: 080509515852), is DENIED.

Defendant's January 26, 2026 Motion for Summary Judgment, or in the Alternative, Summary Adjudication (Reservation ID: 858996122252) is taken off calendar as duplicative.